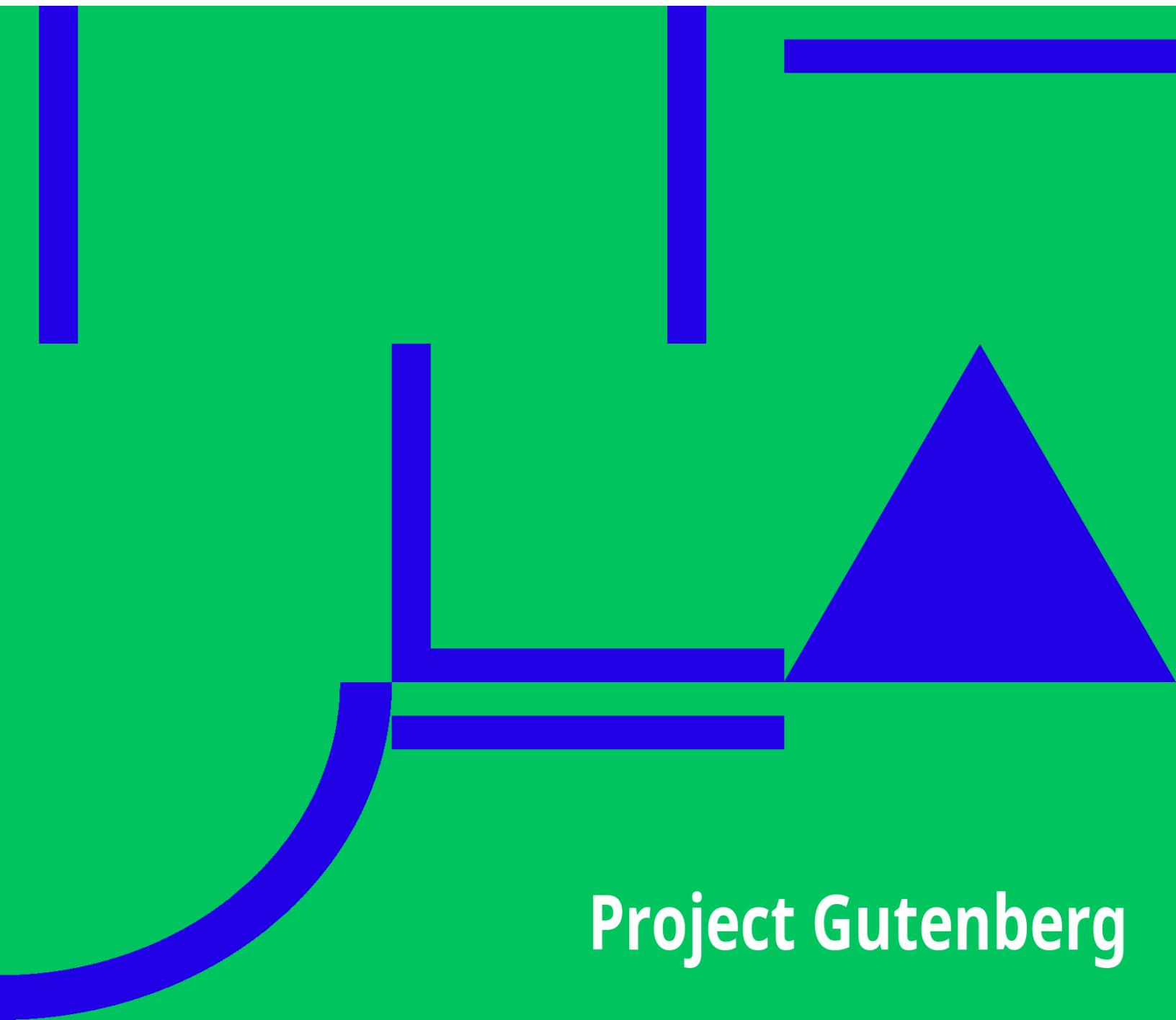


The Lake Gun

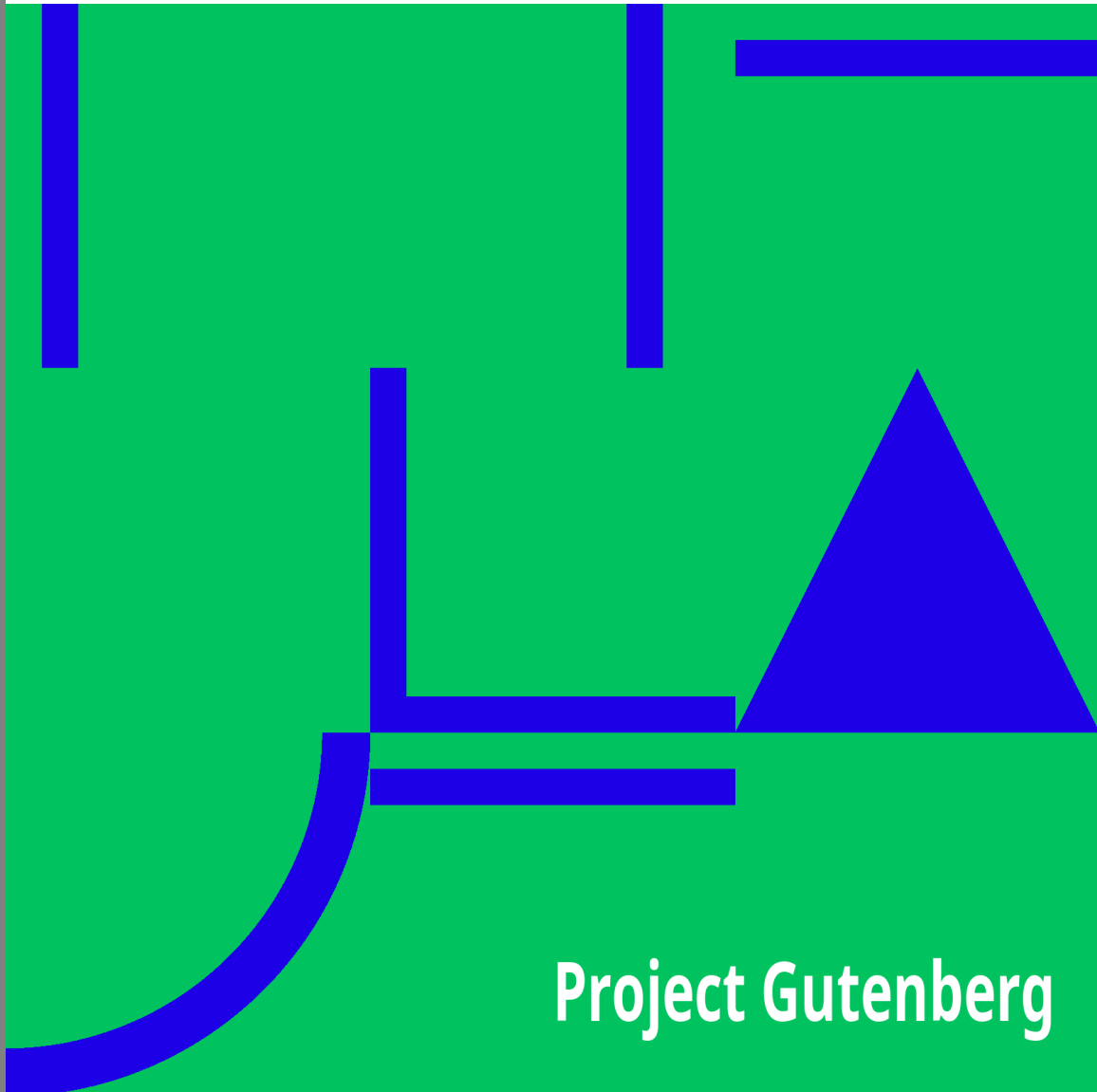
James Fenimore Cooper



Project Gutenberg

The Lake Gun

James Fenimore Cooper



Project Gutenberg

The Project Gutenberg eBook of The Lake Gun

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: The Lake Gun

Author: James Fenimore Cooper

Release date: September 1, 2000 [eBook #2328]

Most recently updated: December 31, 2020

Language: English

Other information and formats: www.gutenberg.org/ebooks/2328

Credits: Produced by Hugh C. MacDougall. HTML version by Al Haines.

*** START OF THE PROJECT GUTENBERG EBOOK THE LAKE GUN

The Lake Gun

by

James Fenimore Cooper

{This text has been transcribed and annotated by Hugh C. MacDougall, Founder and Secretary of the James Fenimore Cooper Society (jfcooper@wpe.com), who welcomes corrections and emendations. The text has been transcribed as written, except that because of the limitations of the Gutenberg Project format, italicized words have been transcribed in FULL CAPITALS.}

{"The Lake Gun" is one of James Fenimore Cooper's very few short stories, and was written in the last year of his life. It was commissioned by George E. Wood for publication in a volume of miscellaneous stories and poems called "The Parthenon" (New York: George E. Wood, 1850), and Cooper received \$100 for it. The story was reprinted a few years later in a similar volume called "Specimens of American Literature" (New York, 1866). It was published in book form in 1932 in a slipcased edition limited to 450 copies (New York: William Farquhar Payson, 1932) with an introduction by Robert F. Spiller.}

{Introductory Note: The "Lake Gun," though based on folklore about Seneca Lake in Central New York State (the "Wandering Jew" and the "Lake Gun"), and on a supposed Seneca Indian legend, is in fact political satire commenting on American political demagogues in general, and in particular on the then (1850) Whig Senator from New York State, William Henry Seward (1801-1872), who had served as Governor of New York (1838-1842) and would later become Secretary of State (1861-1869) under Presidents Lincoln and Johnson. By 1850 Cooper feared that unscrupulous political extremists, mobilizing public opinion behind causes such as abolitionism, were leading America towards a disastrous Civil War. Cooper probably obtained his local lore about Seneca Lake while visiting his son

Paul, who attended Geneva College (now Hobart College) on Lake Seneca from 1840-1844.}

The Lake Gun

by

James Fenimore Cooper

The Seneca is remarkable for its "Wandering Jew," and the "Lake Gun." The first is a tree so balanced that when its roots are clear of the bottom it floats with its broken and pointed trunk a few feet above the surface of the water, driving before the winds, or following in the course of the currents. At times, the "Wandering Jew" is seen off Jefferson, near the head of this beautiful sheet; and next it will appear anchored, as it might be, in the shallow water near the outlet.

{"Wandering Jew" = The medieval legend of Ahasuerus, who mocked Christ on his way to the cross and was condemned to live until Judgment Day, is widespread throughout Europe, though he was only identified as a "Jew" in the 17th century--students at Geneva College (now Hobart College) applied the name to a supposedly unsinkable floating log in Lake Seneca, identified as the legendary "Chief Agayentha"; Jefferson = I am indebted to John Gormley of Burdett, NY, for the information that the Village of Jefferson, which I had been unable to locate, was renamed "Watkins" in 1852 and then the current and well-known "Watkins Glen" in 1926. (August, 2011)}

For more than half a century has this remnant of the forest floated about, from point to point, its bald head whitening with time, until its features have become familiar to all the older inhabitants of that region of country. The great depth of the Seneca prevents it from freezing; and summer and winter, springtime and autumn, is this wanderer to be observed; occasionally battling with the ice that makes a short distance from the shore, now pursuing its quiet way before a mild southern air in June, or, again, anchored, by its roots touching the bottom, as it passes a point, or comes in contact with the flats. It has been known to remain a year or two at a time in view of the village of Geneva, until, accustomed to its sight, the people began to think that it was never to move from its berth any more; but a fresh northerly breeze changes all this; the "Jew" swings to the gale, and, like a ship unmooring, drags clear of the bottom, and goes off to the southward,

with its head just high enough above water to be visible. It would seem really that his wanderings are not to cease as long as wood will float.

{Village of Geneva = now the City of Geneva, at the northern end of Lake Seneca}

No white man can give the history of this "Jew." He was found laving his sides in the pure waters of the Seneca by the earliest settlers, and it may have been ages since his wanderings commenced. When they are to cease is a secret in the womb of time.

The "Lake Gun" is a mystery. It is a sound resembling the explosion of a heavy piece of artillery, that can be accounted for by none of the known laws of nature. The report is deep, hollow, distant, and imposing. The lake seems to be speaking to the surrounding hills, which send back the echoes of its voice in accurate reply. No satisfactory theory has ever been broached to explain these noises. Conjectures have been hazarded about chasms, and the escape of compressed air by the sudden admission of water; but all this is talking at random, and has probably no foundation in truth. The most that can be said is, that such sounds are heard, though at long intervals, and that no one as yet has succeeded in ascertaining their cause.

{"The Lake Gun" = The "Lake Gun" or "Lake Drum" is a mysterious booming sound occasionally heard on Lake Seneca (and on neighboring Lake Cayuga), which has been given a variety of scientific, literary, and legendary interpretations.}

It is not many lustrums since curiosity induced an idler, a traveler, and one possessed of much attainment derived from journeys in distant lands, first to inquire closely into all the traditions connected with these two peculiarities of the Seneca, and, having thus obtained all he could, to lead him to make the tour of the entire lake, in the hope of learning more by actual personal observation. He went up and down in the steamboat; was much gratified with his trip, but could see or hear nothing to help him in his investigation. The "Gun" had not been heard in a long time, and no one could tell him what had become of the "Wandering Jew." In vain did his eyes roam over the broad expanse of water; they could discover nothing to reward their search. There was an old man in the boat, of the name of Peter, who had passed his life on the Seneca, and to him was our traveler referred,

as the person most likely to gratify his curiosity. Fuller (for so we shall call the stranger for the sake of convenience) was not slow to profit by this hint, and was soon in amicable relations with the tough, old, fresh-water mariner. A half-eagle opportunely bestowed opened all the stores of Peter's lore; and he professed himself ready to undertake a cruise, even, for the especial purpose of hunting up the "Jew."

{lustrum = a period of five years; half eagle = a U.S. gold coin worth \$5.00}

"I haven't seen that ere crittur now"—Peter always spoke of the tree as if it had animal life—"these three years. We think he doesn't like the steamboats. The very last time I seed the old chap he was a-goin' up afore a smart norwester, and we was a-comin' down with the wind in our teeth, when I made out the 'Jew,' about a mile, or, at most, a mile and a half ahead of us, and right in our track. I remember that I said to myself, says I, 'Old fellow, we'll get a sight of your countenance this time.' I suppose you know, sir, that the 'Jew' has a face just like a human?"

"I did not know that; but what became of the tree?"

"Tree," answered Peter, shaking his head, "why, can't we cut a tree down in the woods, saw it and carve it as we will, and make it last a hundred years? What become of the tree, sir;—why, as soon as the 'Jew' saw we was a-comin' so straight upon him, what does the old chap do but shift his helm, and make for the west shore. You never seed a steamer leave sich a wake, or make sich time. If he went half a knot, he went twenty!"

This little episode rather shook Fuller's faith in Peter's accuracy; but it did not prevent his making an arrangement by which he and the old man were to take a cruise in quest of the tree, after having fruitlessly endeavored to discover in what part of the lake it was just then to be seen.

"Some folks pretend he's gone down," said Peter, in continuation of a discourse on the subject, as he flattened in the sheets of a very comfortable and rather spacious sailboat, on quitting the wharf of Geneva, "and will never come up ag'in. But they may just as well tell me that the sky is coming down, and that we may set about picking up the larks. That 'Jew' will no more sink than a well-corked bottle will sink."

{picking up the larks = "When the sky falls we shall catch larks" is an old proverb, meaning that an idea or suggestion is ridiculous}

This was the opinion of Peter. Fuller cared but little for it, though he still fancied he might make his companion useful in hunting up the object of his search. These two strangely-assorted companions cruised up and down the Seneca for a week, vainly endeavoring to find the "Wandering Jew." Various were the accounts they gleaned from the different boatmen. One had heard he was to be met with off this point; another, in that bay: all believed he might be found, though no one had seen him lately—some said, in many years.

"He'll turn up," said Peter, positively, "or the Seneca would go down bows foremost. We shall light on the old chap when we least expect it."

It must be confessed that Peter had many sufficient reasons for entertaining these encouraging hopes. He was capitably fed, had very little more to do than to ease off, or flatten in a sheet, the boat being too large to be rowed; and cigars, and liquors of various sorts were pretty much at his command, for the obvious reason that they were under his care. In delivering his sentiments, however, Peter was reasonably honest, for he had the most implicit faith, not only in the existence of this "Jew," but in the beneficent influence of his visits. His presence was universally deemed a sign of good luck.

Fuller passed most of the nights in a comfortable bed, leaving Peter in the boat; sometimes asking for lodgings in a farm-house, and, at others, obtaining them in an inn. Wherever he might be, he inquired about the "Wandering Jew" and the "Lake Gun," bent on solving these two difficult problems, if possible, and always with the same success. Most persons had seen the former, but not lately; while about one in ten had heard the latter. It occurred to our traveler that more of the last were to be found nearer to the northern than to the southern end of the lake.

The cruise continued a fortnight in this desultory manner, with the same want of success. One morning, as Fuller was returning to the boat, after passing the night in a farm-house, he was struck by the statue-like appearance of a figure which stood on the extreme point of a low, rocky

promontory, that was considerably aside from any dwelling or building. The place was just at the commencement of the hill country, and where the shores of the Seneca cease to offer those smiling pictures of successful husbandry that so much abound farther north. A somber, or it might be better to say a sober, aspect gave dignity to the landscape, which, if not actually grand, had, at least, most of the elements that characterize the noble in nature.

But Fuller, at the moment, was less struck with the scenery, charming as that certainly was, than with the statue-like and immovable form on the little promontory. A single tree shaded the spot where the stranger stood, but it cast its shadows toward the west, at that early hour, leaving the erect and chiseled form in clear sun-light. Stimulated by curiosity, and hoping to learn something that might aid him in his search from one as curious as himself, Fuller turned aside, and, instead of descending to the spot where Peter had the boat ready for his reception, he crossed a pleasant meadow, in the direction of the tree.

Several times did our traveler stop to gaze on that immovable form. A feeling of superstition came over him when he saw that not the smallest motion, nor relief of limb or attitude, was made for the ten minutes that his eye had rested on the singular and strange object. At he drew nearer, however, the outlines became more and more distinct, and he fancied that the form was actually naked. Then the truth became apparent: it was a native of the forest, in his summer garb, who had thrown aside his blanket, and stood in his leggings, naked. Phidias could not have cut in stone a more faultless form; for active, healthful youth had given to it the free and noble air of manly but modest independence.

{Phidias = a very famous Greek sculptor of the 5th century B.C.}

"Sago," said Fuller, drawing near to the young Indian, who did not betray surprise or emotion of any sort, as the stranger's foot-fall came unexpectedly on his ear, using the salutation of convention, as it is so generally practiced between the two races. The Indian threw forward an arm with dignity, but maintained his erect and otherwise immovable attitude.

{Sago = a term of greeting, as Cooper believed, among American Indians}

"Oneida?" demanded Fuller, while he doubted if any young warrior of that half-subdued tribe could retain so completely the air and mien of the great forests and distant prairies.

"Seneca," was the simple answer. The word was uttered in a tone so low and melancholy that it sounded like saddened music. Nothing that Fuller had ever before heard conveyed so much meaning so simply, and in so few syllables. It illuminated the long vista of the past, and cast a gloomy shadow into that of the future, alluding to a people driven from their haunts, never to find another resting-place on earth. That this young warrior so meant to express himself—not in an abject attempt to extort sympathy, but in the noble simplicity of a heart depressed by the fall of his race—Fuller could not doubt; and every generous feeling of his soul was enlisted in behalf of this young Indian.

"Seneca," he repeated slowly, dropping his voice to something like the soft, deep tones of the other; "then you are in your own country, here?"

"My country," answered the red man, coldly, "no; my FATHER'S country, yes."

His English was good, denoting more than a common education, though it had a slightly foreign or peculiar accent. The intonations of his voice were decidedly those of the Indian.

"You have come to visit the land of your fathers?"

A slight wave of the hand was the reply. All this time the young Seneca kept his eye fastened in one direction, apparently regarding some object in the lake. Fuller could see nothing to attract this nearly riveted gaze, though curiosity induced him to make the effort.

"You admire this sheet of water, by the earnest manner in which you look upon it?" observed Fuller.

"See!" exclaimed the Indian, motioning toward a point near a mile distant. "He moves! may be he will come here."

"Moves! I see nothing but land, water, and sky. What moves?"

"The Swimming Seneca. For a thousand winters he is to swim in the waters of this lake. Such is the tradition of my people. Five hundred winters are gone by since he was thrown into the lake; five hundred more must come before he will sink. The curse of the Manitou is on him. Fire will not burn him; water will not swallow him up; the fish will not go near him; even the accursed axe of the settler can not cut him into chips! There he floats, and must float, until his time is finished!"

{Swimming Seneca = though I have been unable to discover any genuine Native American origin for this legend, a detailed variation of it can be found in a poem, "Outalissa", by Rev. Ralph Hoyt, published in "Sketches by Rev. Hoyt, Vol. VIII" (New York. C. Shepard, n.d. [ca. 1848] (the Geneva College library copy of which is inscribed "DeLancey" and may have belonged to the family of Cooper's brother-in-law, Episcopal Bishop of Western New York William Heathcote De Lancey (1797-1865), who lived in Geneva)—a somewhat different version forms the Geneva (Hobart) College student legend of Chief Agayentha or "The Floating Chief."}

"You must mean the 'Wandering. Jew?'"

"So the pale-faces call him; but he was never a Jew. 'Tis a chief of the Senecas, thrown into the lake by the Great Spirit, for his bad conduct. Whenever he tries to get upon the land, the Spirit speaks to him from the caves below, and he obeys."

"THAT must mean the 'Lake Gun?'"

"So the pale-faces call it. It is not strange that the names of the red man and of the pale-faces should differ."

"The races are not the same, and each has its own traditions. I wish to hear what the Senecas say about this floating tree; but first have the goodness to point it out to me."

The young Indian did as Fuller requested. Aided by the keener vision of the red man, our traveler at length got a glimpse of a distant speck on the water, which his companion assured him was the object of their mutual search. He himself had been looking for the "Jew" a week, but had asked no

assistance from others, relying on the keenness of his sight and the accuracy of his traditions. That very morning he had first discovered the speck on the water, which he now pointed out to his companion.

"You think, then, that yonder object is the 'Wandering Jew?'" asked Fuller.

"It is the Swimming Seneca. Five hundred winters has he been obliged to keep in the chilled waters of the lake; in five hundred more the Manitou will let him rest on its bottom."

"What was the offense that has drawn down upon this chief so severe a punishment?"

"Listen to our traditions, and you shall know. When the Great Spirit created man, He gave him laws to obey, and duties to perform—"

"Excuse me, Seneca, but your language is so good that I hardly know what to make of you."

An almost imperceptible smile played about the compressed lip of the young Indian, who, at first, seemed disposed to evade an explanation; but, on reflection, he changed his purpose, and communicated to Fuller the outlines of a very simple, and, by no means, unusual history. He was a chief of the highest race in his tribe, and had been selected to receive the education of a pale-face at one of the colleges of that people. He had received a degree, and, yielding to the irrepressible longings of what might almost be termed his nature, he no sooner left the college in which he had been educated, than he resumed the blanket and leggings, under the influence of early recollections, and a mistaken appreciation of the comparative advantages between the civilized condition, and those of a life passed in the forest and on the prairies. In this respect our young Seneca resembles the white American, who, after a run of six months in Europe, returns home with the patriotic declaration in his mouth, that his native land is preferable to all other lands. Fuller soon understood the case, when both reverted to their common object in coming thither. The young Seneca thereupon resumed his explanation.

{the young Indian = almost certainly based on Abraham La Fort or De-hat-katons (1799-1848), an Oneida Indian who attended Geneva College in the late 1820s, but who later abandoned Christianity and returned to his traditional way of life}

"These laws of the Great Spirit," continued the Seneca, "were not difficult to obey so long as the warrior was of a humble mind, and believed himself inferior to the Manitou, who had fashioned him with His hands, and placed him between the Seneca and the Cayuga, to hunt the deer and trap the beaver. But See-wise was one of those who practiced arts that you pale-faces condemn, while you submit to them. He was a demagogue among the red men, and set up the tribe in opposition to the Manitou."

{See-wise = intended to represent William Henry Seward's surname}

"How," exclaimed Fuller, "did the dwellers in the forest suffer by such practices?"

"Men are every where the same, let the color, or the tribe, or the country be what it may. It was a law of our people, one which tradition tells us came direct from the Great Spirit, that the fish should be taken only in certain seasons, and for so many moons. Some thought this law was for the health of the people; others, that it was to enable the fish to multiply for the future. All believed it wise, because it came from the Manitou, and had descended to the tribe through so many generations: all but See-wise. He said that an Indian ought to fish when and where he pleased; that a warrior was not a woman; that the spear and the hook had been given to him to be used, like the bow and arrow, and that none but cowardly Indians would scruple to take the fish when they wished. Such opinions pleased the common Indians, who love to believe themselves greater than they are. See-wise grew bolder by success, until he dared to say in council, that the red men made the world themselves, and for themselves, and that they could do with it what they pleased. He saw no use in any night; it was inconvenient; an Indian could sleep in the light as well as in the darkness; there was to be eternal day; then the hunt could go on until the deer was killed, or the bear treed. The young Indians liked such talk. They loved to be told they were the equals of the Great Spirit. They declared that See-wise should be their principal chief. See-wise opened his ears wide to this talk, and the young men listened to his words as they listened to the song of the mocking-bird. They liked each

other, because they praised each other. It is sweet to be told that we are better and wiser than all around us. It is sweet to the red man; the pale-faces may have more sober minds—"

The Seneca paused an instant, and Fuller fancied that a smile of irony again struggled about his compressed lip. As the traveler made no remark, however, the youthful warrior resumed his tale.

"I hear a great deal of what demagogues are doing among your people, and of the evil they produce. They begin by flattering, and end by ruling. He carries a strong hand, who makes all near him help to uphold it. In the crowd few perceive its weight until it crushes them.

"Thus was it with See-wise. Half the young men listened to him, and followed in his trail. The aged chiefs took counsel together. They saw that all the ancient traditions were despised, and that new conduct was likely to come in with new opinions. They were too old to change. What was done has never been said, but See-wise disappeared. It was whispered that he had gone down among the fish he loved to take out of season. There is one tradition, that he speared an enormous salmon, and the fish, in its struggles, drew him out of his canoe, and that his hands could not let go of the handle of his spear. Let this be as it may, no one ever saw See-wise any more, in the form in which he had been known to his people. At length the trunk of a tree was seen floating about the Seneca, and one of the oldest of the chiefs, pointing to it, pronounced the name of 'See-wise.' He would fish out of season, and his spirit is condemned, they say, to float among the salmon, and trout, and eels, for a thousand winters. It was not long after this that the lake began to speak, in a voice loud as the thunder from the clouds. The Seneca traditions say this is the Manitou calling to See-wise, when he goes down after the fish, out of season."

"And do you, an educated man, believe in this tale?" asked Fuller.

"I can not say. The things learned in childhood remain the longest on the memory. They make the deepest marks. I have seen the evil that a demagogue can do among the pale-faces; why should I not believe the same among my own people?"

"This is well enough, as respects the curse on the demagogue; but lakes do not usually—"

Fuller had got thus far, when the Seneca, as if in mockery, emitted the sound that has obtained the name of the "Lake Gun" among those who have lived on its banks in these later times. Perhaps it was, in part, the influence of the Seneca's legend, united to the opinions and statements of the inhabitants of that region, which conspired to make our traveler start, in awe and surprise; for, certainly, the deep-mouthed cannon never gave forth a more impressive and sudden concussion on the ear.

"It does, indeed, sound very like a gun!" said Fuller, after a long pause had enabled him to speak.

"It is the voice of the Great Spirit, forbidding See-wise to fish," answered the Seneca. "For a time the demagogue has all the talking to himself, but, sooner or later, the voice of truth is heard, which is the voice of the Manitou. But I must go nearer to the tree—ha! what has become of it?"

Fuller looked, and, sure enough, the speck on the water had vanished. This might have been by an unobserved movement in a current; or it might have been owing to a sudden variation in the light; certain it was, no tree could now be seen. Fuller then proposed to use his boat, in endeavoring to get nearer to the "Jew." The Seneca gave a very cheerful assent, and, throwing his light summer blanket, with an air of manly grace, over a shoulder, he followed to the water-side.

"Most red men," resumed the young warrior, as he took his place in the boat, "would see something marvelous in this appearance and disappearance of the swimming Seneca, and would hesitate about going any nearer to him; but this is not my feeling—error is strengthened by neglecting to look into truth. I hope yet to go near See-wise."

Fuller hardly knew what to think of his companion's credulity. At times he appeared to defer to the marvelous and the traditions of his tribe; then, again, the lights of education would seem to gleam upon the darkness of his superstition, and leave him a man of inductive reason. As for himself, he

was probably not altogether as much of the last as his pride of race would have led him to hope.

Peter had seen nothing, but he had heard the "Gun."

"'T was a mere flash in the pan to what I have heard, when the lake is in 'arnest," said the old fellow, with the love of exaggeration so common with the vulgar. "Still, it was a gun."

"A signal that the 'Wandering Jew' is near by; so, haul aft the sheets, and let us depart."

In a quarter of an hour the boat was lying with her foresheet hauled over, and her helm down, within a hundred yards of the object of the long search of the whole party. It was deep water, and a slight ripple under what might be termed the cutwater of the tree indicated a movement. Perhaps a lower current forced forward the roots, which, in their turn, urged the trunk ahead. As often happens in such cases, the accidental formation of the original fracture, aided by the action of the weather, had given to the end of the trunk a certain resemblance to a human countenance. Peter was the first to point out the peculiarity, which he looked upon uneasily. Fuller soon observed it, and said the aspect was, in sooth, that of a demagogue. The forehead retreated, the face was hatchet-shaped, while the entire expression was selfish, yet undecided. As for the Seneca, he gazed on these signs with wonder, mingled with awe.

{hatchet shaped = William Henry Seward was famous for his angular, hatchet-shaped nose}

"We see here the wicked See-wise. The Great Spirit—call him Manitou, or call him God—does not forget what is wrong, or what is right. The wicked may flourish for a while, but there is a law that is certain to bring him within the power of punishment. Evil spirits go up and down among us, but there is a limit they can not pass. But Indians like this Swimming Seneca do much harm. They mislead the ignorant, arouse evil passions, and raise themselves into authority by their dupes. The man who tells the people their faults is a truer friend than he who harps only on their good qualities. Be that only a tree, or be it a man bound in this form, for a thousand

winters, by the hand of the Great Spirit, it tells the same story. See-wise did once live. His career comes to us in traditions, and we believe all that our fathers told us. Accursed be the man who deceives, and who opens his mouth only to lie! Accursed, too, is the land that neglects the counsels of the fathers to follow those of the sons!"

"There is a remarkable resemblance between this little incident in the history of the Senecas and events that are passing among our pale-faced race of the present age. Men who, in their hearts, really care no more for mankind than See-wise cared for the fish, lift their voices in shouts of a spurious humanity, in order to raise themselves to power, on the shoulders of an excited populace. Bloodshed, domestic violence, impracticable efforts to attain an impossible perfection, and all the evils of a civil conflict are forgotten or blindly attempted, in order to raise themselves in the arms of those they call the people."

"I know your present condition," answered the young Seneca, openly smiling. "The Manitou may have ordered it for your good. Trust to HIM. There are days in which the sun is not seen—when a lurid darkness brings a second night over the earth. It matters not. The great luminary is always there. There may be clouds before his face, but the winds will blow them away. The man or the people that trust in God will find a lake for every See-wise."

*** END OF THE PROJECT GUTENBERG EBOOK THE LAKE GUN

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project GutenbergTM License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.